On the Basis of Sex - Screenplay

By Daniel Stiepleman

A preparation session by the defense prior to the court date . . .

BROWN: **(Pg 80)** Paint the judges a picture of the America that will exist if they rule the wrong way. Children running home from school to find . . . No one's there. Mommy's at the office. Or on a factory floor.

GRISWOLD: If a man and woman vie for the same job, she can work for less. What is a man without a paycheck to take care of his family?

BROWN: What woman would want him?

BOZARTH: Wages go down. Divorce rates soar. Society unravels.

BROWN: Exactly! *(to Bozarth)* The other side wants this to be about the Equal Protection Principle. **You** need to show that what's really at stake is the American family.

GRISWOLD: What the judges are deciding is what kind of society they want their children and grandchildren to grow up in.

BOZARTH: **(Pg 75)** We list the laws. Every federal law that treats men and women differently so the Court sees exactly the can of worms these folks are . . . *(fades out)*

COURT CLERK: **(Pg 102-103)** All rise. The United States Court of Appeals for the 10th Circuit is now in session. Judges Doyle, Holloway, and Daugherty presiding.

JUDGE HOLLOWAY: The first case is docket number 711127. Charles Moritz v Commissioner of Internal Revenue.

INTRODUCTION

Ruth Bader Ginsburg was born in 1933 in Brooklyn, New York. The Notorious RBG, as she came to be known, was an outspoken champion of civil rights, especially as an advocate for women's rights and gender equality, Ginsburg left an indelible mark on our country and our lives with her legal arguments, steadfast support of civil rights, and, of course, her words.

She was once asked, "When will there be enough women on the Supreme Court." Her answer? "When there are nine." People were shocked, but she replied. "There's been nine men, and nobody's ever raised a question about that."

FOR EDUCATIONAL USE ONLY

The year is 1971. This is the 1st gender-discrimination suit RBG argued in court; and it launched her legal and judicial career. And it was the first time a provision of the Internal Revenue Code had been declared unconstitutional . . .

On the Basis of Sex by Daniel Stiepleman

JUDGE HOLLOWAY: **(Pg 103)** Counsel for the appellant you may proceed.

RBG: (Pg 106-117) *(adjusts the microphone down)* Your Honors and may it please the court. Section 214 denies Mr. Moritz a caregiver tax deduction available to similarly situated women who . . .

JUDGE HOLLOWAY: *(interrupting and condescending)* Mrs. Ginsburg. You are aware that the government has three co-equal branches?

RBG: Yes. Of course, Judge.

JUDGE HOLLOWAY: And that it is the Congress's role to write law.

RBG: *(sharply)* Your Honor, I understand how government works.

JUDGE HOLLOWAY: *(unaccustomed to being addressed impatiently)* Well sometimes a law, even a law that is legal under the constitution, may not be good for every individual.

JUDGE DOYLE: I have a question. If I understand correctly, you're concerned about men and women being pigeon-holed into certain roles based on gender.

RBG: Yes. That's correct. Because –

JUDGE DOYLE: *(sharply)* Excuse me. That wasn't my question. *(Ruth shrinks)* It strikes me that the caregiver deduction does the opposite. It helps women be able to work outside the home. Isn't that a good thing?

RBG: But the law assumes it must be ***women*** who are supposed to stay at home in the first place.

JUDGE DOYLE: So it's the assumption that's the problem?

JUDGE DAUGHERTY: Then when ***can*** a law differentiate on the basis of sex? Never?

JUDGE HOLLOWAY: Keeping women out of combat, for example.

RBG: I'm not sure whether I agree with that example, but-

JUDGE DAUGHERTY: So you think women belong on the front lines now, too?

RBG: No. That's not what . . *(takes a deep breath, composing herself)* Gender. Like Race. Is a

FOR EDUCATIONAL USE ONLY

biological, unalterable trait. There is nothing that women are inherently better at than men. Nor vice versa.

JUDGE HOLLOWAY: Growing a beard? *(laughs)*

JUDGE DAUGHERTY: Lactation. *(more laughter)*

RBG: *(visually frustrated)* No thinking person can possibly believe Charles Moritz's gender relates to his ability to-

JUDGE DOYLE: *(interrupting)* Why can't we, Mrs. Ginsburg? In most households, aren't women the primary caregivers? Aren't men the breadwinners? Doesn't that reality suggest that it's the natural order of things? *(waves Ruth to her seat dismissively)*

JUDGE HOLLOWAY: Mr. Bozarth for the appellee. You may proceed.

BOZARTH: *(steps to the podium)* Your Honors and may it please the court. Congress created this tax deduction to help ***caregivers*** go out and work. Folks that, if they weren't working, would stay home. Are we meant to believe that this ***man*** would have the skills or the . . . caregiver's instinct to do that? Widowers don't choose to be caregivers, Judge Doyle. It's thrust upon them. As for women. . . It doesn't take a legal treatise to prove what a hundred thousand years of human history makes clear.

Y'honors, I'm certain there isn't a man amongst us who wouldn't try to ease his wife's burdens. There is a long and honorable tradition in the Courts of supporting laws like this one. I for one would rather see my government err on the side of trying too hard to help the ladies of this country. Rather than be indifferent to their unique burdens. Now maybe Mr. Moritz disagrees. Or maybe he simply doesn't like paying taxes. Personally, I don't believe that. I believe Charles Moritz is a victim. Not of his government. But of lawyers who used his case to achieve their own ends -- Radical. Social. Change. We rest our case on our briefs and argument and ask that the Court uphold the Tax Court's decision. *(he sits)*

JUDGE HOLLOWAY: Counsel for the appellant. You have rebuttal.

RBG: *(Leaving her notes behind, Ruth approaches the podium with fiery determination)* Radical social change. *(sardonic laugh)* When I was in law school, there was no women's

FOR EDUCATIONAL USE ONLY

bathroom. It's amazing to me now, but we never complained. Not because we were timid. We were just astounded that we were in law school at all.

A hundred years ago, Myra Bradwell wanted to be a lawyer. She had fulfilled the requirements for the Illinois bar but wasn't allowed to practice because she was a woman. An injustice she asked the Supreme Court to correct. Illinois was so confident of victory, they didn't even send a lawyer to argue their side. They were right. She lost. *(this is a different Ruth. She's confident, compelling)* That was the first time someone went to court to challenge his or her prescribed gender role. A hundred years ago. Radical social change?

(clutches the podium) Sixty-five years ago. When women in Oregon wanted to work overtime, and make more money, as men could, the Court looked to the precedent in Bradwell. And said no. And then there were two precedents. Then three. Then four. And on. And on. You can draw a direct line from Myra Bradwell to Gwendolyn Hoyt - told ten years ago she was not entitled to a jury of her peers.*

(she looks the Judges directly in the eyes) That is the legacy the Government asks you to uphold today. You are being urged to protect the culture and traditions and morality of an America that no longer exists. A generation ago, my students would have been arrested for indecency wearing the clothes that they do. Sixty-five years ago, it would have been unimaginable that my daughter would aspire to a career. And a hundred years ago. I would not have had the right to stand before you.

(presses her fingers into the podium for emphasis) We are not asking you to change the country. That's already happened without any Court's permission. We are asking you to protect the right of the country to change. There are a hundred and seventy-eight federal laws that differentiate on the basis of sex. Count them. The Government did the favor of compiling them for you. And while you're at it, I urge you to read them. They are obstacles to our children's aspirations.

FOR EDUCATIONAL USE ONLY

JUDGE DOYLE: You're asking us to overturn nearly a century of precedent. She looks him dead in the eye. Without hesitation.

RBG: I'm asking you to set a new precedent -- As courts have done before when the law is outdated.

JUDGE DOYLE: But in those cases the courts had a clear constitutional handle. The word 'woman' doesn't appear even once in the U.S. Constitution.

RBG: Nor does the word 'freedom.' Your honor. *(Doyle looks down on her for a long time. And she returns his gaze – unflinchingly)* Our sons and daughters are barred by law from opportunities based on assumptions about their abilities. How will they ever disprove these assumptions, if laws like Section 214 are allowed to stand? That is why we must take these laws on. One-by-one. For as long as it takes. You have the power to set the precedent that will get us started. You can right this wrong. The principal purpose of Section 214 is not to protect women nor to discriminate against men. It is to provide ***caregivers*** the opportunity to work outside the home. Therefore, this court should fix the law in the way most in line with the legislative intent. Extend the deduction to never-married men. Help all caregivers equally.

(she should be done. She knows that. But she lets herself linger a moment more. And no one stops her) Our client, Charles Moritz, was well raised to be the sort of man we should all hope our sons will become. He deserves our admiration. Not only has he accepted the burden of caring for his mother -- when no one would expect it of him. But in doing so, he has surpassed the limitations the rest of us -- and our laws -- try to force upon him. We rest our case on our briefs and argument and ask that you reverse the Tax Court's decision. *(Ruth returns to her seat)*

VOICE OVER: **(Pg 119-120)** That case: Moritz v Commissioner was the first U.S. federal case to find laws unconstitutional for discriminating on the basis of sex.

RBG: **(Pg 94)** You don't get to tell me when to quit.

VOICE OVER: **(Pg 119-120)** As Director of the ACLU's Women's Rights Project, Ruth Bader Ginsburg became the leading gender rights lawyer of her generation, winning several

FOR EDUCATIONAL USE ONLY

landmark cases before the U.S. Supreme Court.

RBG: **(Pg 95/86)** Have you seen Appendix E from the Government's brief Laws written by men who think we're privileged to be excused from men's obligations. It's not a privilege. It's a cage. These laws are the bars. That entire comprehensive list of laws that differentiate between the sexes? We turn it into our own hit list.

VOICE OVER: **(Pg 119-120)** On June 14, 1993, President Bill Clinton nominated Ruth Bader Ginsburg to the U.S. Supreme Court.

RBG: **(Pg 63)** A court ought not be affected by the weather of the day. But will be by the climate of the era.

VOICE OVER: **(Pg 119-120)** On August 3, 1993, the Senate confirmed her nomination: 96-3.

SOURCE INFORMATION

Author: Daniel Stiepleman
ISBN: N/A
Publisher: Scriptfly.com
Date (Month/Year): Aug 2013

* **Hoyt v. Florida - Nov 20, 1961**
https://www.oyez.org/cases/1961/31

Facts of the case
A Florida statute automatically exempted women from jury duty and did not place women on jury lists. Women could, however, volunteer and register for jury duty. After an all-male jury convicted Mrs. Hoyt for murdering her husband, she appealed the decision to the Florida Supreme Court. The Florida Court upheld the conviction.
Conclusion
In a unanimous decision, the Court held that the statute was based on a reasonable classification and was therefore constitutional. Noting that women were "still regarded as the center of home and family life," the Court found that the states could relieve them from the civic responsibility of jury duty unless they themselves determined that such service was consistent with their own "special responsibilities." The Court held that the case was distinct from other cases involving racial discrimination in jury selection, and that male-female disproportions on jury lists carried no constitutional significance.

FOR EDUCATIONAL USE ONLY